

POKER FLATS POA v ROLON

22CV46309

PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT AGREEMENT

This case involves a breach of contract dispute. Now before the Court is a motion to enforce a settlement agreement filed by Plaintiff Poker Flat Property Owners Association, Inc.

The Motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court.

Failure to include this language In the notice may be a basis for the Court to deny the motion.

Accordingly, the motion is **DENIED** without prejudice to refile.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

HAMPTON v EAST BAY MUNICIPAL UTILITY DISTRICT, et al

22CV46329

DEFENDANT URBAN PARK'S MOTION FOR BIFURCATION OF LIABILITY

This matter involves personal injuries sustained by Plaintiff Maxwell Hampton ("Plaintiff") while swimming in Lake Comanche. Plaintiff generally alleges that while recreating along the south shore of the Camanche Dam and Reservoir ("Reservoir"), near the Arrowhead campground, he dove into the water from a rock wall and struck a submerged boulder, resulting in quadriplegia. Defendant East Bay Municipal Utility District ("EBMUD") owns and maintains the Reservoir. Defendant Urban Park Concessionaires ("UPC") has a contractual relationship with EBMUD to provide hospitality and resort management services at the Reservoir.

Now before the Court is UPC's motion to bifurcate.

I. Factual Background

The facts of this matter have been laid out in the Court's previous rulings in this case. In brief, this case arises from an accident that occurred on July 27, 2019. At that time, Plaintiff alleges that while recreating along the south shore of Lake Camanche, near the Arrowhead campground, he dove into the water from rock wall and struck submerged boulder, resulting in quadriplegia.

Various issues of material fact remain in contention. However, at the heart of the case and relevant to the instant motion, are questions as to UPC's role in placing the boulder in the water and maintaining the area, whether the boulder was open and obvious, and the degree of risk assumed by the Plaintiff.